IN THE NATIONAL COMPANY LAW TRIBUNAL, NEW DELHI
COURT-V

Item No.-101
CP(CAA) No. 06/230/232/ND/2023
New CA336/20023

IN THE MATTER OF:
IPE Global Ltd. And IPE Global Venture Pvt. Ltd **....Applicant**

SECTION
U/s 230-232 **Order delivered on 03.10.2023**

CORAM:
SHRI MAHENDRA KHANDELWAL,
HON'BLE MEMBER (JUDICIAL)

Dr. SANJEEV RANJAN,
HON'BLE MEMBER (TECHNICAL)

PRESENT:
For the Applicant : Rajeev Kumar, Adv
For the Respondent :
For the IT Dept. : Puneett Singhal Adv; Jr Standing Counsel Itd Along With Gaurav Gupta Sr Standing Counsel & Shivendra Singh Jr Standing Counsel

ORDER

New CA336/2023:-

This is an application filed under Rule 11 of NCLT Rules, 2016 for taking on record the statement of assets and liabilities of demerged undertaking as on the appointed date as provided in the Scheme of Arrangement. Heard Ld. Counsel for the Applicant. This Tribunal vide order dated 18.08.2023, while passing order for approving the scheme mentioned in Para 19 (i) and (ii) ordered that all property, rights, powers, liabilities and duties of the demerged Company relating to the demerged undertaking shall be transferred without further Act or deed to the resulting Company and invest in the resulting Company pursuant to Section 232 of the Companies Act, 2013. The present application has been filed for taking into record the assets and liabilities of the demerged undertaking as on appointed dated i.e. on 01.04.2023. The same is taken on record with just exceptions. With these observations, the present IA **is disposed off.**

Sd/- **Sd/-**
(Dr. SANJEEV RANJAN) **(MAHENDRA KHANDELWAL)**
MEMBER (T) **MEMBER (J)**

Khushboo
03.10.2023